

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
June 18, 2026

#	Case Name	Tentative
1.	<u>30-2022-01294879-CU-BC-CJC</u> Elshenawi vs. Elshenawi	No tentative ruling.

2.	<u>30-2024-01438047-CU-BC-WJC</u> Scarcella vs. Witherill	Before the Court are two (2) motions: Motion to Compel Further Responses for Request for Production (ROA 437) and Motion to Compel Further Responses for Request for Production (ROA 446). On May 18, 2026, Plaintiff Chris Scarcella (“Plaintiff Scarcella”) and Plaintiff Melissa Edwards (“Plaintiff Edwards”) (collectively “Plaintiffs”) filed amended motions, separate statements, and a declaration against Defendant Brittni Witherill (“Defendant Witherill”) and Defendant Alex Antonescu (“Defendant Antonescu”) (collectively “Defendants”). <i>See</i> ROAs 383, 387, 397, 398, 400. On May 29, 2026, Plaintiffs filed further supplemental amended motions, which narrowed the scope of issues before the Court. <i>See</i> ROAs 437, 441, 445, 446, 435, 442. On June 5, 2026, Defendants filed their Opposition and Declaration to Plaintiffs’ Motions. ROAs 461, 463. On June 8, 2026, Plaintiffs filed their Reply to Defendants’ Opposition. ROA 467. Defendants argue that Plaintiffs’ motions are moot and request that the Court deny Plaintiffs’ Motions and impose sanctions in the amount of \$3,000 against Plaintiffs for misuse of the discovery process. ROA 461. Plaintiffs request that the Court grant their Motions, deny the sanctions requested by Defendants, and impose sanctions against Defendants in the amount of \$2,000. ROA 446. I. Untimely Oppositions The Court has broad discretion to accept or reject late filed papers filed beyond the deadline without a prior court order finding good cause for the late submission. Cal. Rules of Court, Rule 3.1300(d); <i>see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i>, 2 Cal. App. 5th 252, 262–263 (2016); <i>Samaniego v. Empire Today LLC</i>, 205 Cal. App. 4th 1138, 1146 (2012). Here, Defendants’ Opposition was due no later than June 1,
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2026. ROA 365. Defendants filed their Opposition four (4) days late on June 5, 2026. ROA 461. The Court exercises its discretion to consider the tardy Opposition in the interest of resolving the current disputes. However, the Court admonishes Defendants' counsel for their inability to follow the briefing schedule as ORDERED.

II. Unauthorized Filings

The Court's April 28, 2026, Minute Order expressly instructed that no other filings were allowed absent leave of court. ROA 365. Nevertheless, Plaintiffs, without leave of court, filed several supplemental amended motions, declarations, and statements. *See* ROAs 437, 435, 441, 442, 445, and 446. While unauthorized, the additional filings did serve to narrow the issues before the Court. The Court exercises its discretion to consider the unauthorized filings *only* for the sake of efficiency and only after finding no prejudice against the Defendants. The Court admonishes Plaintiffs for failing to follow the Minute Order.

III. Motion to Compel Further Responses to Requests for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220.

Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc.

	Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that “the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> Under California Code of Civil Procedure Section 2031.310, the demanding party may move for an order compelling a further response to the demand if the demanding party deems that any statement of compliance with the demand is incomplete; a representation of inability to comply is inadequate, incomplete, or evasive; or an objection is without merit or too general. Cal. Civ. Proc. Code § 2031.310(a)(1), (2), (3). At the outset, the Court notes that Defendant Witherill’s and Defendant Antonescu’s responses to the Requests for Production (“RFP”) are identical and the Court will analyze them together. <i>See</i> ROAs 437, 446. Plaintiffs argue that the responses remain deficient. ROA 467. Defendants argue that the Motions are moot because their June 1, 2026, supplementation cured all deficiencies. ROA 461. a. RFP No. 4 Upon review, Defendants’ response to RFP No. 4 is not code compliant. The response fails to specify whether the inability to produce drafts, historical account dashboards, IP edit logs, administrative platform communication
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	threads, or alternative version histories is because the particular items or categories have never existed, have been destroyed, have been lost, misplaced, or stolen, or have never been, or are no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. In addition, while the response identifies certain third-party platforms that may have possession, custody, or control of the requested material, it fails to provide the addresses of any such entity. <i>Id.</i> Finally, the response is not fully responsive to the request. <i>Id.</i> Defendants produced a screenshot of their message inbox, which merely reflects the existence of communication threads, but does not include the underlying communications themselves. <i>Id.</i> Accordingly, a further response to RFP No. 4 is warranted. b. RFP No. 7 Upon review, Defendants' response to RFP No. 7 is not code compliant. The response fails to specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. Moreover, the response fails to indicate whether Defendants know or believe that any individual or entity has possession, custody, or control of the requested materials, and if so, it does not identify the name and address of such individual or entity. <i>Id.</i> Finally, the response is not responsive to the request. <i>Id.</i> Defendants produced documents reflecting listing screenshots, listing parameters, and prospective tenant inquiries; however, that production does not include the communications themselves, which are the subject of the request. <i>Id.</i> Accordingly, a further response to RFP No. 7 is warranted.
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	c. RFP No. 9 Upon review, this response is not code compliant because it fails to specify whether the inability to produce metadata that Plaintiffs requested is because the metadata item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party, as required by Code of Civil Procedure section 2031.230. <i>See</i> ROA 472. In addition, while the response suggests that certain “third-party vendors” may have possession, custody, or control of the requested material, it fails to identify the name or address of any such individual or entity. <i>Id.</i> Accordingly, a further response to RFP No. 9 is warranted. d. RFP No. 14. Upon review, Defendants’ response is code compliant, and no further response is warranted. <i>See</i> ROA 472. The response constitutes a verified production of all responsive, non-privileged communications within Defendants’ possession, custody, or control. Additionally, the request is ambiguous in scope, as it seeks communications “relating to Plaintiffs or the Subject Property’s habitability,” without clearly delineating whether it refers to two distinct categories of communications or a single, overlapping category. <i>Id.</i> Plaintiffs’ interpretation of the request as encompassing a broader subject matter does not, on this record, establish that Defendants’ verified response is incomplete or evasive. IV. Mandatory Sanctions California Code of Civil Procedure Section 2031.310(h) provides that the court “shall impose a monetary sanction . . . against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . <i>unless</i> it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code
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	§ 2031.310(h). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Defendants’ lack of substantial justification, monetary sanctions are mandatory as to Plaintiff’s request. Additionally, the Court DENIES Defendants’ request for monetary sanctions. V. Amount of Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court’s analysis here is reasonableness. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone</i>, <i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code
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	§ 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). Having weighed the three (3) aforementioned principles, the Court exercises its discretion to reduce the requested sanctions amount of \$2,000 and impose sanctions in the amount of \$1,500 against the Defendants. Accordingly, the Court GRANTS IN PART Plaintiffs' Motion to Compel Further Responses for Request for Production (ROA 437) and Motion to Compel Further Responses for Request for Production (ROA 446). Defendants are ORDERED to provide a further response to RFP No. 4 detailing whether the inability to produce drafts, historical account dashboards, IP edit logs, administrative platform communication threads, or alternative version histories is because the particular items or categories item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third-party platforms that may have possession, custody, or control of the requested material. Lastly, to the extent possible, Defendants shall provide the underlying communications themselves, and if unable, provide the proper explanation. Defendants shall provide a further response within 10 (ten) days of receiving notice. Defendants are ORDERED to provide a further response to RFP No. 7 detailing whether the particular item or category <i>has never existed, or has never been, or is no longer</i> in possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third party platforms that may have possession, custody, or control of the requested material. Lastly, to the extent possible, Defendants shall provide the underlying communications themselves, and if unable, provide the proper explanation. Defendants shall provide a further
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		response within 10 (ten) days of receiving notice. Defendants are ORDERED to provide a further response to RFP No. 9 detailing whether the metadata <i>has never existed</i>, or <i>has never been</i>, or is <i>no longer</i> in possession, custody, or control of the responding party. Additionally, the response shall include the addresses of the third party platforms that may have possession, custody, or control of the requested material. Defendants shall provide a further response within 10 (ten) days of receiving notice. Lastly, the Court IMPOSES sanctions in the amount of \$1,500 against Defendants, jointly and severally, due and payable to Chris Scarcella within thirty (30) days of receiving notice. Plaintiffs to give notice.
3.	<u>30-2023-01313697-CU-CR-NJC</u> Hughes vs. Orange County	Before the Court are the following six (6) motions brought by Defendants Jessica Capitulo (“Capitulo”) and Defendant County of Orange (“Orange”) (collectively, “Defendants”) against Plaintiff Albert Hughes III (“Plaintiff”): one Motion to Compel Further Responses to Requests for Production (“MF-RFP”), Set One, and Sanctions, brought by Capitulo; two (2) Motions to Compel Further Responses to Form Interrogatories (“MF-FROG”), set Two, and Sanctions, one brought by Orange, and one brought by Capitulo; two (2) Motions to Compel Further Responses to Special Interrogatories (“MF-SROG”), Set One, and Sanctions, one brought by Capitulo, and one brought by Orange; and one MF-FROG, Set One, and Sanctions, brought by Capitulo. ROAs 553, 556, 558, 562, 564, 566. The underlying controversy involves claims of violation of the Tom Bane Civil Rights Act, intentional infliction of emotional distress, negligence, conversion, trespass to chattels, and breach of contract resulting from a probate matter where the decedent’s cause of death is disputed. ROA 411. Orange seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide

	further, verified, code compliant responses to Orange's Special Interrogatories ("SROG"), Set One, Nos. 1, 2, 5, 7-16, 18, 20, 22, 23, and 27-29, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$4,480.00 for the costs borne by Orange in bringing their MF-SROG, Set One, and Sanctions. ROA 564, p.2. Orange also seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide further, verified, code compliant responses to Orange's Form Interrogatories ("FROG"), Set Two, No. 17, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$4,480.00 for the costs borne by Orange in bringing their MF-FROG, Set Two, and Sanctions. ROA 566, p.2. In total, Orange seeks an award of \$8,960.00 in monetary discovery sanctions. Capitulo seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide further, verified, code compliant responses to Capitulo's SROG, Set One, Nos. 1-13, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$4,480.00 for the costs borne by Capitulo in bringing their MF-SROG, Set One, and Sanctions. ROA 562, p.2. Capitulo also seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Plaintiff to provide further, verified, code compliant responses to Capitulo's Request for Production ("RFP"), Set One, Nos. 7-11, 18, and 21-24, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$4,480.00 for the costs incurred by Capitulo in bringing their MF-RFP, Set One, and Sanctions. ROA 558, p.2. Additionally, Capitulo seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide further, verified, code compliant responses to Capitulo's FROG, Set One, Nos. 2.5, 9.2, 12.3-12.6, and 14.1, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$4,480.00 for the costs incurred by Capitulo in bringing their MF-FROG, Set
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	One, and Sanctions. ROA 553, p.2. Finally, Capitulo seeks an order, pursuant to California Code of Civil Procedure Section 2030.290, compelling Plaintiff to provide further, verified, code compliant responses to Capitulo's FROG, Set Two, No. 17.1, in association with Capitulo's Request for Admissions ("RFA"), Set One, Nos. 1-24, and 26-78, and imposing monetary discovery sanctions upon Plaintiff in the amount of \$6,720.00 for the costs incurred by Capitulo in bringing their MF-SROG, Set Two, and Sanctions. ROA 556, p.2. In total, Capitulo seeks an award of \$20,160.00 in monetary discovery sanctions. Plaintiff requests that the Court deny all of Defendants' motions and impose sanctions upon Defendants' counsel in the amount of \$57,187.50 for the costs incurred by Plaintiff in opposing the Defendants' motion. ROA 603, p.11; ROA 605, p.12; ROA 607, p.4; ROA 609, p.9; ROA 611, p.4. Moreover, Defendants' replies contend that Plaintiff's Declaration (ROA 597) is invalid and should not be considered because Plaintiff's signature does not immediately follow the acknowledgment that all statements were made under penalty of perjury, but, instead, comes at the end of the document, many pages after the acknowledgment. This issue is immaterial to the ultimate ruling. Valid or not, the result is the same. Defendants also contend that, as a <i>pro se</i> litigant, Plaintiff cannot seek attorney's fees, despite being a licensed attorney. Again, immaterial. The reduction in Defendants' sanctions awards is a result of their failure on multiple individual demands despite ultimately prevailing on the motions. <i>See infra</i>. Statutory Timelines for Serving Initial Responses to Discovery Requests The California Discovery Act requires responses to interrogatories and requests for production within thirty (30) days after service, unless extended or shortened by the
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		court through a party's motion, or the parties agree to an alternate deadline. Cal. Civ. Proc. Code §§ 2030.260, 2030.270, 2031.260, 2031.270, 2031.270. Section 1010.6 extends this deadline by two (2) days for subpoenas served electronically. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). Parties may agree in writing to extend the deadline for responding. Cal. Civ. Proc. Code §§ 2030.270 (a)-(b), 2031.270(a)-(b), 2033.260(a)-(b). California Code of Civil Procedure Section 2030.290 provides: [i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection of work product. . . . Cal. Civ. Proc. Code § 2030.290(a). A party may be relieved of these waivers <i>only upon motion</i> and only upon the court's determination that <i>both</i> of the following conditions are satisfied: (i) that "[t]he party has subsequently served a response that is in substantial compliance . . . [and (ii)] [t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." Cal. Civ. Proc. Code § 2030.290(a). Further, should the court find that a responding party failed to file a timely response, "[t]he court <i>shall</i> impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code §§ 2030.290(c). Here, Orange propounded SROG, Set One, and FROG, Set Two, on January 16, 2025, by mail and e-service. ROA 564, p.14, ¶ 3; ROA 566, p.13, ¶ 3. Plaintiff's deadline to serve initial responses was February 19, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.260, 2030.270. By agreement, the parties extended Plaintiff's deadline to
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	provide initial responses to March 5, 2025. ROA 564, p.14, ¶ 4; ROA 566, p.13, ¶ 4. Plaintiff did not provide initial responses to Orange’s SROG, Set One, and FROG, Set Two, until March 31, 2025. ROA 564, pp. 14-15, ¶ 6. Thus, any objections that Plaintiff raises to Orange’s SROG, Set One, and FROG, Set Two, or options to produce writings in lieu of answers, are waived by operation of law. Cal. Civ. Proc. Code § 2030.290(a). Further, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff’s failure to provide timely responses to Orange’s SROG, Set One, or FROG, Set Two, nor that the imposition of sanctions would result in an injustice to Plaintiff. Thus, sanctions are mandatory and just. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Demands The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (citing <i>DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)). Parties’ obligation to meet and confer under the California Rules of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040, 2030.300(b), 2031.310(b)(2); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). In evaluating whether a reasonable, good faith attempt at
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	an informal resolution occurred, courts consider “whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit.” <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1294 (2009). The level of effort required for informal resolution varies depending on the circumstances and is within the court’s discretion to determine. <i>See Marriage of Moore, supra</i>, 102 Cal. App. 5th 102 at 1294; <i>See also Obregon v. Super. Ct.</i>, 67 Cal. App. 4th 424, 430-31 (1988) (“[i]n a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice.”). "A reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1439 (1998). Here, Plaintiff served initial responses to Orange’s FROG, Set Two, and SROG, Set One, on March 31, 2025, via email. ROA 546, p.15, ¶ 8. On April 30, 2025, Orange provided a letter to Plaintiff addressing each of Plaintiff’s allegedly non-compliant responses to Orange’s SROG, Set One, and FROG, Set Two. ROA 546, p.15, ¶ 10; ROA 566, p.14, ¶ 10. On May 15, 2025, the parties met telephonically and conferred regarding Plaintiff’s initial responses to Orange’s SROG, Set One, or FROG, Set Two. ROA 564, p.15, ¶ 12. On May 16, 2025, Orange served its MF-SROG, Set One, and FM-FROG, Set Two, upon Plaintiff by mail and email. ROA 204, p.181; ROA 201, p.204. On August 5, 2025, Plaintiff served initial responses to Capitulo’s SROG, Set One; RFP, Set One; and FROG, Set One; by email. ROA 561, ¶ 4; ROA 559, ¶ 4; ROA 554, ¶ 4. On August 11, 2025, Plaintiff served responses to Capitulo’s
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	FROG, Set Two, via email. ROA 568, ¶ 6. On September 10, 2025, Capitulo provided a detailed letter to Plaintiff that addressed Plaintiff's responses to Capitulo's SROG, Set One; FROG, Set One; RFP, Set One; and FROG, Set Two. ROA 561, ¶ 5; ROA 554, ¶ 5; ROA 559, ¶ 5; ROA 568, ¶ 7. On September 16, 2025, Plaintiff responded to Capitulo's letter by email, declining to provide supplemental responses to any of Capitulo's discovery requests. ROA 561, ¶ 8. On September 19, 2025, Capitulo warned Plaintiff by email that unless supplemental responses were forthcoming, Capitulo would seek court intervention. ROA 561, ¶ 9; ROA 554, ¶ 9. That same day, Capitulo served Plaintiff with MF-SROG, Set One; MF-FROG, Set One; MF-RFP, Set One; and MF-FROG, Set Two. ROA 320, p.12; ROA 327, p.12; ROA 319, p.10; ROA 321, p.12. The Court finds that, on the facts before it, Defendants have satisfied the statutory requirement to make a good-faith effort to meet and confer prior to bringing the instant motions. Code Compliant Responses to Interrogatories Responses to interrogatories must consist of either: (i) an answer; (ii) an objection; or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). As a preliminary matter, the Court reiterates here that Plaintiff's objections and option to produce writings instead of answers to Orange's SROG, Set One, and FROG, Set Two are waived by operation of law. <i>See supra</i>. The responding party must answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v.</i>
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	<i>Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding “it is not proper to answer by stating ‘See my Deposition’, or ‘See my pleading . . .’”). If an answer requires reference to another document, said document should be summarized and included in a comprehensive answer. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete answer, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party’s responsibility to provide information available from sources under their control, such as the party’s lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v. City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that “[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete answer after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, answers must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”); <i>Guzman v. General Motors Corp.</i>, 154 Cal. App. 3d 438, 442-43 (1984).
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To sustain an objection on the grounds that a discovery request is cumulative or duplicative, the opposing party must present sufficient facts for the court to determine that either: “[t]he discovery sought is *unreasonably* cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome or less expensive[;]” or that “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” Cal. Civ. Proc. Code § 2019.030.

Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook Civ. Proc. Discovery § 5.5. For interrogatories and requests for Admission, “[w]hen a question is somewhat ambiguous, but ‘the nature of the information sought is apparent,’ the question must be answered.” *Id.* (citing *Deyo, supra*, 84 Cal. App. 3d at 783). If a court determines that a request for admission or interrogatory is “too ambiguous to allow intelligent reply” it may either sustain the objection or order the question rephrased. *Cembrook v. Super. Ct In and For City and Cnty of S.F.*, 56 Cal. 2d 423, 430 (1961).

An objection to an interrogatory on the grounds that it seeks premature disclosure of expert witness testimony is invalid. Instead, the proper procedural response is to move for a protective order. Cal. Civ. Proc. Code 2034.250(a).

“Where ‘a discovery request seeks information implicating the constitutional right of privacy’ the party seeking discovery must make a showing of need greater than that needed for discovery requests generally.” *Cnty. of L.A. v. Super. Ct.*, 65 Cal. App. 5th 621, 629 (2021) (*quoting Williams v. Super. Ct.*, 3 Cal. 5th 531, 556 (2017)). Under *Hill v. NCAA* and *Williams v. Superior Court*, courts apply a balancing test: the *opposing party* must demonstrate a protected privacy interest, a reasonable expectation of privacy, and a serious intrusion. *Hill v. Nat’l Collegiate Athletic Ass’n*, 7 Cal. 4th 1, 35-39 (1994); *Williams, supra*, 3

	Cal. 5th at 552-60. The burden then shifts to the propounding party to show legitimate countervailing interests. <i>Williams, supra</i>, 3 Cal. 5th at 552. Courts balance those interests and may impose protective measures. <i>Id.</i> There is generally no protection for the identity, addresses, and phone numbers of percipient witnesses. <i>Pioneer Electronics (USA), Inc. v. Super. Ct.</i>, 40 Cal. 4th 360, 367, 373 (2007); <i>see also Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1426 (2008) (holding that basic identifying and demographic information of percipient witnesses, including names, addresses, and phone numbers, is discoverable, and the trial court erred in failing to strike privacy objections to discovery requests seeking this information). An objection on the grounds that a specially prepared interrogatory is compound, conjunctive, or disjunctive is sustained where more than a single subject is covered by the question. <i>Clement, supra</i>, 177 Cal. App. 4th at 1291 (stating that “[q]uestions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’”). The purpose of California Code of Civil Procedure Section 2030.060(f) is to “prevent questions worded so as to require more information that could be obtained by 35 separate questions.” <i>Id.</i> (quoting Weil & Brown, Cal. Prac. Guide: Civil Proc. Before Trial, ¶ 8:978.1, p. 8F-21 (The Rutter Group 2009)). “For discovery purposes, information is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.). Thus, for the Court to sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pac. Tel. & Tel. Co. v. Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico Furniture Co. v. Super. Ct.</i>, 56 Cal. 2d 407, 418 (1961)
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	(emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico, supra</i>, 56 Cal. 2d at 417); <i>Lopez v. Watchtower Bible & Tract Soc’y of N.Y., Inc.</i>, 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” Cal. Civ. Proc. Code § 2017.020. To sustain an objection on the grounds that the information requested is equally available to the propounding party, the respondent must explicitly state that they lack sufficient information to provide a complete response. Cal. Civ. Proc. Code § 2030.220(c). The respondent is relieved from the duty to make a reasonable inquiry to obtain the information from other sources only if those sources are readily available to the propounding party. <i>Id.</i> “If an objection is made to an interrogatory [or request for admission] . . . based on a claim of privilege, the particular privilege invoked shall be clearly stated.” Cal. Civ. Proc. Code § 2030.240(b). An interrogatory must <i>call for</i>, rather than merely <i>refer to</i>, a privileged communication for the attorney client privilege to be invoked. <i>Coy v. Super. Ct. of Contra Costa Cnty.</i>, 58 Cal. 2d 210, 219 (1962). Objections on the grounds that a request seeks confidential commercial information or trade secrets are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Tr. Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be disclosed, or be disclosed only to
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		specified persons or in a specified way” upon a party's motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). That an interrogatory calls for a legal conclusion is not a valid objection. <i>West Pico, supra</i>, 56 Cal. 2d at 417 (stating “[s]uch objection may be proper when the answer is intended to have probative value” but may not be used in discovery to prevent “a party from obtaining information that will lead him to probative facts.”). An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial. Cal. Civ. Proc. Code § 2030.010. Orange’s SROG, Set One, Nos. 1,2, 16, 18, 22, 23, 29. The Court finds that Plaintiff's second supplemental responses to Orange’s SROG, Set One, Nos. 1, 2, 16, 18, 22, 23, and 29 are not compliant. Plaintiff’s responses all suffer from the same maladies: they fail to specify why the information is unavailable; do not explain why total amounts are not computed; nor do they detail the efforts Plaintiff has made to obtain the information or compute the amounts. <i>See</i> ROA 572, pp. 2-3, 5, 28-30, 36, 39, 45-46. Accordingly, Plaintiff must provide a further, verified, code compliant response to Orange’s SROG, Set One, Nos. 1, 2, 16, 18, 22, 23, and 29, without objections. Orange’s SROG, Set One, Nos. 5, 7-15, 27, 28 Notwithstanding that all Plaintiff’s objections are waived, the Court finds that Plaintiff’s answers to Orange’s SROG, Set One, Nos. 5, 7-15, 27, and 28 are responsive to the inquiry and are therefore compliant. <i>See</i> ROA 572, pp. 8-10, 12, 14, 16, 18, 20, 22, 24, 27, 42-44. Therefore, Orange is not entitled to further responses to these interrogatories. Orange’s SROG, Set One, No. 20 The Court finds that Plaintiff’s second supplemental response is not compliant. Plaintiff’s answer alludes to
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	other documents but does not specify where in those documents the requested information could be found. <i>See</i> ROA 572, pp. 33. Additionally, given the simplicity of the information requested, the Court is not convinced that compiling a complete response would be so arduous as to justify placing the burden on Orange to provide the answer. Accordingly, Plaintiff must provide a further, verified, code compliant response to Orange's SROG, Set One, No. 20, without objections. Orange's FROG, Set Two, No. 17.1 The Court finds that only Plaintiff's responses to Orange's FROG, Set Two, No. 17.1 re: RFA, Set One, Nos. 15 and 16 are not code compliant. Neither of Plaintiff's responses provides facts supporting Plaintiff's contention that the named parties are witnesses who can substantiate Plaintiff's claims. <i>See</i> ROA 578, pp. 69, 70, 74. Accordingly, Plaintiff must provide a further, verified, code compliant response to Orange's FROG, Set Two, No. 17.1 re: RFA Nos. 15 and 16, without objections. Additionally, although all of Plaintiff's objections to Orange's FROG, Set Two, No. 17.1 re: RFA Nos. 1-14 and 17-34 are waived; the Court finds that Plaintiff's second supplemental responses are otherwise compliant. <i>See</i> ROA 578. Therefore, Orange is not entitled to further responses to its FROG, Set Two, Nos. 17.1 re: RFA Nos. 1-14 and 17-34. Capitulo's SROG, Set One, Nos. 1-4, 10, 11, 13 The Court finds that Plaintiff's second supplemental responses to Capitulo's SROG, Set One, Nos. 1-4, 10, 11, and 13 are compliant. <i>See</i> ROA 574, pp. 3-9, 23-25, and 29-30. Therefore, Capitulo is not entitled to further responses. Capitulo's SROG, Set One, Nos. 5-9 Plaintiff's provides hybrid answers to Capitulo's SROG, Set One, Nos. 5 -9, that objected on the grounds that the
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	interrogatories are duplicative, vague and ambiguous, implicate third party privacy protections, or require premature identification of expert witnesses. ROA 574, pp. 10, 11, 13, 15, 17-20. Plaintiff fails to make the factual showing required to substantiate these objections. Consequently, Plaintiff's objections are OVERRULED. Notwithstanding the foregoing, because the Court finds that Plaintiff's second supplemental responses to Capitulo's SROG, Set One, Nos. 5-9 are compliant, Capitulo is not entitled to further responses. Capitulo's SROG, Set One, No. 12 Plaintiff provides a hybrid answer to Capitulo's SROG, Set One, No. 12 that objects on the grounds that the interrogatory is duplicative and is impermissibly compound, conjunctive, or disjunctive. ROA 574, p.27. Plaintiff does not make the factual showing required to sustain their objection on the grounds that the interrogatory is duplicative. Additionally, the Court finds that the interrogatory is not impermissibly compound, conjunctive, or disjunctive. Consequently, both objections are OVERRULED. Moreover, the Court finds that Plaintiff's response is evasive and unresponsive. Plaintiff's response does not follow the instructions to pair Capitulo's alleged conduct with an associated statutory violation. <i>See</i> ROA 574, p.26. Instead, the response provides a disjointed list of statutes separate from a list of alleged unlawful conduct. <i>See Id.</i> Consequently, Plaintiff must provide a further, verified, code compliant response to Capitulo's SROG, Set One, No. 12, without objections. Capitulo's FROG, Set One, Nos. 2.5, 9.2, 12.3, 12.4, 12.5, 12.6, 14.1. Plaintiff offers hybrid answers to Capitulo's FROG, Set One, Nos. 2.5, 9.2, 12.3, 12.5, 12.6, and 14.1 that raise various objections on the following grounds: that the term "incident" is vague and ambiguous because it refers to
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	multiple events and potential time periods; that the interrogatories seek information that is neither relevant nor reasonably calculated to lead to the discovery of admissible evidence; that the interrogatories present an undue burden; that they are duplicative; that the information is equally available to Capitulo; and that the interrogatories request information protected by the attorney client privilege and attorney work product privilege. ROA 570, pp. 3-5, 10-11, 19, 28. The Court finds that the term “incident” is clearly defined and not so ambiguous as to preclude an intelligent reply. <i>See</i> ROA 554, p.16. Accordingly, Plaintiff’s objections to Capitulo’s FROG, Set One, Nos. 9.2, 12.3, 12.4, 12.5, 12.6, and 14.1 on these grounds are OVERRULED. Plaintiff fails to show how Capitulo’s FROG, Set One, No. 2.5 and 9.2, cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial. Therefore, Plaintiff’s objections on the grounds of irrelevance are OVERRULED. The Court finds that the presence of the word “and” in Capitulo’s FROG, Set One, No. 2.5, does not render the interrogatory impermissibly compound as the inquiry does not span multiple subjects. Therefore, Plaintiff’s objection on the grounds that the interrogatory is compound, conjunctive, or disjunctive is OVERRULED. Plaintiff fails to make a factual showing to demonstrate that providing a response to Capitulo’s FROG, Set One, No. 2.5, will result in injustice. Accordingly, Plaintiff’s objection on the grounds of undue burden is OVERRULED. Plaintiff fails to show how Capitulo’s FROG, Set One, Nos. 2.5, 9.2, 12.3, 12.4, and 12.5 are <i>unreasonably</i> cumulative or duplicative, or that the requested information is obtainable from some other source that is more convenient, less burdensome, or less expensive. Therefore, Plaintiff’s objections to Capitulo’s FROG, Set One, No. 2.4, 9.2, 12.3, 12.4, and 12.5 on the grounds that they are duplicative are OVERRULED.
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	Plaintiff does not explicitly state that he lacks sufficient information to provide a complete response to Capitulo's FROG, Set One, Nos. 12.3, 12.4, 12.5, 12.6, and 14.1, that the sources of the information required are readily available to Capitulo. Consequently, Plaintiff's objections on the grounds that the information sought is equally available to Capitulo are OVERRULED. The Court finds that Capitulo's FROG, Set One, Nos. 9.2, 12.3, 12.4, 12.6, and 14.1 merely refer to, but do not call for the production of, documents that might reasonably enjoy the attorney client or attorney work product privileges. <i>See</i> ROA 570, pp. 4-5, 14, 18, 21-22, 26. Therefore, Plaintiff's raising of the attorney client and attorney work product privileges to these interrogatories is improper and, accordingly, OVERRULED. The Court also finds that Plaintiff's answers to Capitulo's FROG, Set One, Nos 2.5, 12.3, 12.5, and 14.1 are all evasive, nonresponsive, or do not provide complete responses to the questions presented. <i>See</i> ROA 570, pp. 3, 5-6, 10-11, 15, 19, 23, 23, 28. Pursuant to the foregoing, Plaintiff must provide further, verified, code compliant responses to Capitulo's FROG, Set One, Nos. 2.5, 9.2, 12.3, 12.4, 12.5, 12.6, and 14.1, without objections. Capitulo's FROG, Set Two, No 17.1 re: RFA Nos. 1-24, 26-78. Plaintiff's second supplemental responses to Capitulo's FROG, Set Two, No. 17.1, provide hybrid answers that raise an unduly burdensome host of boilerplate, nuisance, and frivolous objections. <i>E.g.</i> ROA 580, p.2 (contending, however, mind-bogglingly, that a request to admit or deny that a party owed another a duty calls for the disclosure of <i>trade secrets</i>) (emphasis added). Here, the Court gives Plaintiff's gamesmanship a level of treatment commensurate with the effort Plaintiff expended in bringing it to bear.
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	All of Plaintiff's objections to Capitulo's FROG, Set Two, No. 17.1 re: RFA Nos. 1-24 and 26-78 are OVERRULED, for invalidity, inapplicability, or failure to make the factual showing required. <i>See supra</i>. Additionally, the Court finds that Plaintiff's answers to Capitulo's FROG, Set Two, No. 17.1 re: RFA Nos. 1-8, 10-24, 26, 28, 30-32, 36-38, 42-44, 48-50, 54-56, 60, 62, 64, 66, 68, 70, 72, 74, 76, and 78 fail to provide a complete response to 17.1(c). While identifying "Parties to this lawsuit" or "Plaintiff's expert witness" as persons who have knowledge of the facts requested, Plaintiff fails to specifically identify the parties or provide their contact information. ROA 580. The Court also finds that Plaintiff's responses to Capitulo's FROG, Set Two, No. 17.1 re: RFA Nos. 9, 27, 29, 33-35, 39-41, 45-47, 51-53, 57-59, 61, 63, 65, 67, 69, 73, 75, and 77 are unresponsive to 17.1(b). Where the inquiry asks that Plaintiff provide facts supporting Plaintiff's contention that the listed witnesses can substantiate Plaintiff's claims, Plaintiff merely provides the list of witnesses in duplicate, with no facts. ROA 580. Finally, the Court finds that Plaintiff's second supplemental response to Capitulo's FROG, Set Two, No. 17.1 re: RFA No. 71 is unresponsive to both 17.1(b) and (c). Plaintiff's answer fails to provide facts that support Plaintiff's contention that the listed witnesses can substantiate Plaintiff's claim for treble damages, and identifies witnesses but fails to provide their contact information. ROA 580, pp. 551-552. Pursuant to the foregoing, Plaintiff must provide further, verified, code compliant responses to Capitulo's FROG, Set Two, No. 17.1 re: RFA Nos. 1-24 and 26-78, without objections. Good Cause Showing re: Motions to Compel Further Responses to Requests for Production In addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the
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		underlying discovery disputes, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to “set forth specific facts showing good cause justifying the discovery sought by the demand.” Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must satisfy the following requirements: first, they “must identify a disputed fact that is of consequence in the action[;]” second, they must explain how either (i) “the discovery sought will tend in reason to prove or disprove that fact[,] or will “lead to other evidence that will tend to prove or disprove the fact.” <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); <i>see Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present “specific facts relating to each category of materials sought to be produced;” offered “mere generalities” as justification for the production; and did not provide “focused, fact-specific justifications for [their] demands.”). Capitulo’s RFP, Set One, Nos. 7-11, 18, and 22-24. As good cause for compelling further responses to RFP, Set One, Nos. 7-11, 18, and 22-24, Capitulo offers that “the information sought could lead to the discovery of statements about the incident and/or Plaintiff’s alleged injuries which are directly relevant to Plaintiff’s alleged damages for medical expenses, lost earnings, and general damages for pain and suffering.” ROA 576, pp. 4, 6, 9, 11, 14, 16, 20, 22, 25. The Court finds that Capitulo has shown good cause to compel Plaintiff’s further response to RFP, Set One, Nos. 7-11, 18, and 22-24. Capitulo’s RFP, Set One, No. 21 Capitulo’s RFP, Set One, No. 21 demands that Plaintiff produce “[a] copy of YOUR Social Security card.” ROA 576, p.16. Plaintiff’s supplemental response objects on constitutional privacy grounds. <i>Id.</i> Capitulo offers the same justification for a further response as that provided for RFP, Set One, Nos. 7-11, 18, and 22-24, detailed above. ROA 576,
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pp. 17-18.

The Court fails to follow Capitulo's reasoning of how a Social Security card might lead to statements relevant to damages. Thus, Capitulo has not shown good cause to compel production for RFP, Set One, No. 21, and is therefore not entitled to a further response.

Code Compliant Responses to Requests for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220.

Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b).

A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. *Id.* If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding

		party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). The Court incorporates here the standards detailed above for substantiating objections to interrogatories as applicable to objections to requests for production, except for objections on the grounds of attorney client privilege or attorney work product privilege. <i>See supra.</i> Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.” <i>Hernandez v. Super. Ct.</i>, 112 Cal. App. 4th 285, 292 (2003). Critically, specific factual descriptions of documents permit a judicial evaluation of a claim of privilege. <i>Id.</i> It is the initial burden of the party asserting the privilege to demonstrate that the communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Ct.</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate objections based on privilege, when timely served, are sufficient to preserve those objections, despite other substantive flaws, until the Court “receives sufficient information to decide whether they have merit.” <i>Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015).
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	Accordingly, if a party responding to an inspection demand timely serves a response asserting an objection based on the attorney client privilege or work product doctrine, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges.”). If the response and any privilege log fail to provide sufficient information to allow the trial court to rule on the merits, the court may order the responding party to provide a further response by serving a privilege log or, if one has already been served, a supplemental privilege log that adequately identifies each document the responding party claims is privileged and the factual basis for the privilege claim. <i>Lockyer, supra</i>, 122 Cal. App. 4th at p. 1075. In ordering a further response, the court also may impose monetary sanctions on the responding party if that party lacked substantial justification for providing its deficient response or privilege log. Cal. Civ. Proc. Code § 2031.310(h); <i>Catalina Island, supra</i>, 242 Cal. App. 4th at 1127. Pursuant to the foregoing, the Court finds that Plaintiff has failed to satisfy the factual showing to substantiate any of his objections to Capitulo’s RFP, Set One, Nos. 7-11, 18, and 22-24 on the grounds that the requests are vague, ambiguous, or duplicative. Consequently, Plaintiff’s objections on these grounds are all OVERRULED. Capitulo’s RFP, Set One, Nos. 7, 8, 18, 22-24 Plaintiff’s responses to Capitulo’s RFP, Set One, Nos. 7, 8, 18, and 22-24, are noncompliant. Each provides an agreement to permit production in its entirety while
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		concurrently referring to exhibits and declarations allegedly already served. ROA 576, pp. 2, 4-5, 14-15, 18, 21, 23. Additionally, neither agreement specifies the date by which Plaintiff will produce responsive documents. <i>Id.</i> Consequently, Plaintiff must provide a further, verified, code compliant response to Capitulo's RFP, Set One, Nos. 7, 8, 18, and 22-24, without objections. Capitulo's RFP, Set One, Nos. 9-11 Plaintiff raises attorney work product objections to each of Capitulo's RFP, Set One, Nos. 9-11. ROA 576, pp. 7, 9, 12. The Court finds, however, that Plaintiff has not provided either a privilege log or a sufficient factual showing for the court to evaluate the merits of Plaintiff's claim. Consequently, Plaintiff must provide a privilege log that provides sufficient factual information to substantiate Plaintiff's claim of work product privilege to Capitulo's RFP, Set One, No. 9-11. Motions to Compel Further Responses to Requests for Discovery California Code of Civil Procedure Section 2030.300 allows the requesting party to move for an order compelling further response to interrogatories if, among other things, the demanding party deems that "[a]n answer . . . is evasive or incomplete[,] [a]n exercise of the option to produce documents . . . is unwarranted or the [] specification of those documents is inadequate[,] or [a]n objection in the response is without merit or too general." Cal. Civ. Proc. Code § 2030.300(a). Similarly, California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that "[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general." Cal. Civ. Proc. Code § 2031.310(a). The motion must also be accompanied by a meet and confer declaration and must set forth specific facts
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	showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). If notice of the demands is not served within forty-five (45) days of the responding party's service of their verified responses or verified supplemental responses, the demanding party waives the right to compel further responses absent an agreement by the parties in writing to a specific later date. Cal. Civ. Proc. Code §§ 2030.300(c), 2031.310(c). Section 1010.6 extends this deadline by two (2) court days for initial responses served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). Plaintiff argues that Defendants' motions are untimely but fails to provide any supporting facts. ROA 601, p.2; ROA 603, p.2; ROA 607, p.2; ROA 609, p.2. Indeed, Plaintiff directs the Court to exhibit J of Plaintiff's declaration to find an email that purportedly proves Defendants' motions are untimely. ROA 597, ¶ 11. However, no such document exists, and the Court finds no other facts that support Plaintiff's argument. Additionally, Plaintiff argues that the Court should not consider Defendants' motions on the grounds that the amended motions were untimely served. ROA 597, p.10. On the record before the Court, that is clearly false. All of Defendants' amended moving papers were timely served and filed no later than May 18, 2026, as ordered. Orange's MF-SROG, Set One; and MF-FROG, Set Two On March 31, 2025, Plaintiff served initial responses to Orange's FROG, Set Two, and SROG, Set One, via email. ROA 546, p.15, ¶ 8. Orange's deadline to file motions to compel was May 19, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.300(c). On May 16, 2025, Orange served its MF-SROG, Set One,
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	and FM-FROG, Set Two, upon Plaintiff by mail and email. ROA 204, p.181; ROA 201, p.204. Pursuant to the foregoing, and in light of Plaintiff's numerous noncompliant responses to Orange's SROG, Set One, and FROG, Set Two, outlined above, the Court finds that Orange's motions are proper. Capitulo's MF-SROG, Set One; MF-FROG, Set One; MF-RFP, Set One; and MF-FROG, Set Two On August 5, 2025, Plaintiff served initial responses to Capitulo's SROG, Set One; RFP, Set One; and FROG, Set One; by email. ROA 561, ¶ 4; ROA 559, ¶ 4; ROA 554, ¶ 4. Capitulo's deadline to file a motion to compel further responses was September 23, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.300(c), 2031.310(c). On August 11, 2025, Plaintiff served responses to Capitulo's FROG, Set Two, via email. ROA 568, ¶ 6. Capitulo's deadline to file a motion to compel further responses was September 30, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.300(c). On September 19, 2025, Capitulo served Plaintiff with MF-SROG, Set One; MF-FROG, Set One; MF-RFP, Set One; and MF-FROG, Set Two. ROA 320, p.12; ROA 327, p.12; ROA 319, p.10; ROA 321, p.12. Pursuant to the foregoing, and having already found that Capitulo has shown good cause to compel a further response to all but one of Capitulo's RFP, Set One, the Court finds that Capitulo's motions are all proper. Sanctions re: Motions to Compel Further Responses to Discovery 'Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement, supra</i>, 177 Cal. App. 4th at 1286-1287).
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		Courts must impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses to a demand for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, neither party offers, and the Court does not find, any substantial justification for either party’s discovery misuse outlined above. Additionally, the Court finds no reason to believe that imposing monetary sanctions for discovery misuse would result in an injustice to either party. Consequently, monetary discovery sanctions are mandatory and just. Assigning Liability for Sanctions California Code of Civil Procedure section 2023.030 authorizes a court to impose monetary sanctions against a person who misuses the discovery process, an attorney who advises such conduct, or both. Cal. Civ. Proc. Code § 2023.030(a). It likewise authorizes sanctions against a party who unsuccessfully asserts that another has engaged in discovery misuse, an attorney who advised that assertion, or both. <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citations omitted).
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		Here, Plaintiff is in <i>pro per</i>. Therefore, Plaintiff is liable for his own discovery misuse outlined above, and associated monetary sanctions. Capitulo's failure to show good cause to compel a further response to Capitulo's RFP, Set One, No. 21, is not attributable to client misconduct. Therefore, Lynberg & Watkins are liable for any associated monetary sanctions. Additionally, Capitulo's insistence to pursue, without good cause, further responses to Capitulo's SROG, Set One, Nos. 1-11 and 13, is not attributable to client misconduct. Therefore, Lynberg & Watkins are liable for any associated monetary sanctions. Likewise, Orange's insistence to pursue, without good cause, further responses to Orange's SROG, Set One, Nos. 5, 7-15, 27, and 28, is not attributable to client misconduct. Therefore, Lynberg & Watkins are liable for any associated monetary sanctions. Lastly, Orange's insistence to pursue, without good cause, further responses to Orange's FROG, Set Two, Nos. 17.1 re: RFA Nos. 1-14 and 17-34, is not attributable to client misconduct. Therefore, Lynberg & Watkins are liable for any associated monetary sanctions. Determining Reasonable Monetary Sanctions Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction: (i) compulsion; (ii) causation; and (iii) reasonableness. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790. Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by "a declaration setting forth facts supporting the amount of any monetary sanction sought." Cal. Civ. Proc. Code § 2023.040. "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone</i>,
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		<i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means that a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are <i>not</i> compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Here, having weighed these principles and having considered both parties’ calculations of the reasonable expenses incurred as a result of bringing and defending these motions, the Court finds that for successfully bringing her motions, Capitulo is entitled to an award of monetary discovery sanctions in the amount of \$15,544.61 against Plaintiff. Additionally, for successfully bringing their motions, the Court finds that Orange is entitled to a monetary sanctions award of \$2,055.54 against Plaintiff. Accordingly, the Court makes the following orders: The Court GRANTS IN PART Capitulo’s Motion to Compel Further Responses to Requests for Production, Set One (ROA 558) and ORDERS Plaintiff to serve verified, code compliant responses, without objections, to Capitulo’s Requests for Production, Set One, Nos. 7, 8, 18, and 22-24; and submit a privilege log with sufficient facts validating his claim of attorney work product privilege to Nos. 9-11, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Capitulo’s Motion to Compel Further Responses to Form Interrogatories, Set Two (ROA 556) and ORDERS Plaintiff to serve verified, code compliant responses, without objections, to Capitulo’s Form Interrogatory, Set Two, No. 17.1 re: Requests for
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	Admission, Set One, Nos. 1-24 and 26-78, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Capitulo's Motion to Compel Further Responses to Form Interrogatories, Set One (ROA 553) and ORDERS Plaintiff to serve verified, code compliant responses, without objections, to Capitulo's Form Interrogatory, Set One, Nos. 2.5, 9.2, 12.3, 12.4, 12.5, 12.6, and 14.1, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Capitulo's Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 562) and ORDERS Plaintiff to serve a verified, code compliant response, without objections, to Capitulo's Special Interrogatory, Set One, No. 12, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Orange's Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 564) and ORDERS Plaintiff to serve a verified, code compliant response, without objections, to Orange's Special Interrogatory, Set One, Nos. 1, 2, 16, 18, 20, 22, 23, and 29, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Orange's Motion to Compel Further Responses to Form Interrogatories, Set Two (ROA 566) and ORDERS Plaintiff to serve a verified, code compliant response, without objections, to Orange's Form Interrogatory, Set Two, No. 17.1 re: Requests for Admission Nos. 15 and 16, no later than ten (10) days after receiving notice of this Order. The Court IMPOSES monetary discovery sanctions upon Plaintiff in the total amount of \$17,600.14, due and payable to Lynberg & Watkins no later than ninety (90) days after receiving notice of this Order. Defendants shall give notice.
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4.	<u>30-2025-01500136-CU-BC-CJC</u> Barr vs. Elite Beverage International Inc.	Before the Court is a Motion for Reconsideration submitted by Defendants Elite Beverage International (“Elite”), Inc., Steven C. Rice, Stellar Spirits and Wines, Inc., and Luis A. Cota (“Defendants”), pursuant to California Code of Civil Procedure Section 1008. ROA 138. Defendants request that the Court reconsider its April 21, 2026, order granting Plaintiff’s motions to compel further responses to discovery demands (ROAs 74, 81, 85, and 89) and imposing monetary discovery sanctions upon Defendants’ counsel (ROAs 94 and 97). <i>Id.</i> The Court issued the previous order after Defendants’ counsel failed to appear in person for an Informal Discovery Conference (“IDC”) as ordered (ROA 79). ROA 138. Defendants request reconsideration on the grounds that Defendants’ counsel’s failure to appear was inadvertent. ROA 138 ¶ 3. Counsel argues that because the IDC was not on the merits, counsel assumed that remote appearance was permitted and, thus, attempted to appear remotely via the Court’s Zoom link for Department CM02. <i>Id.</i> Additionally, Defendants request that the Court reconsider its order imposing monetary discovery sanctions on counsel for Defendants on the grounds that Plaintiff’s motion requested the imposition of sanctions exclusively upon Elite and did not place Defendants’ counsel on notice for potential sanctions. ROA 138 ¶ 3. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). A motion for reconsideration requires a showing of “new or different facts, circumstances, or law.” Cal. Civ. Proc. Code § 1008. On March 19, 2026, the Court ordered the parties to attend an Informal Discovery Conference (“IDC”) scheduled for April 20, 2026. ROA 79. The Court’s order emphasized, in both bold and italicized lettering, that “[c]ounsel are to appear <i>in person</i> for the IDC” and that failure to adhere to
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	the Court’s order would result in sanctions. <i>Id.</i>, (italics in original). Here, the Court notes that Defendants offer no new or different facts, circumstances, or law in support of this motion. Thus, with respect to Defendants’ request that the Court reconsider its prior order on the grounds that Defendants’ counsel inadvertently failed to comply with the Court’s order to appear in person, the Court declines. Notice Requirements State law, as well as both state and federal constitutions, demand notice before the imposition of monetary sanctions. <i>In re Marriage of Fuller</i>, 163 Cal. App. 3d 1070, 1077 (1985); Cal. Civ. Proc. Code § 2023.030; Cal. Const., art. I § 7; U.S. Const., 14th Amend. California Code of Civil Procedure Section 2023.030 requires that any “party, person, or attorney” upon whom a court imposes sanctions for misuse of the discovery process first be provided with notice. Cal. Civ. Proc. Code § 2023.030. This notice requirement extends even to counsel of record where a moving party’s motion for sanctions does not request the imposition of sanctions against them. <i>Fuller, supra</i>, 163 Cal. App. 3d at 1078. Thus, a court does not have discretion to order the <i>ex parte</i> imposition of sanctions against counsel of record unless they are first placed on notice by the moving party. <i>O’Brien v. Cseh</i>, 148 Cal. App. 3d 957, 962 (1983). Here, the Court finds that Plaintiff’s motions do not request sanctions upon Defendants’ counsel and therefore did not place Defendants’ counsel on notice. ROA 74, p.2; 81, p.2; ROA 85, p.2; ROA 89, p.2. Thus, Defendant’s argument is well taken. Accordingly, the Court GRANTS IN PART Defendants’ Motion for Reconsideration and amends the previous Minute Order (ROA 97) as follows: the Court strikes the portion of the order imposing discovery sanctions on Defense Counsel Prenovost, Normandin, Dawe & Rocha in the amount of \$9,487.50, and ORDERS counsel for
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		Defendants to appear and Show Cause re: failure to follow the Court's order to appear in person for IDC, and to provide justification for the imposition of sanctions upon Defendants rather than Defendants' counsel, scheduled for July 9, 2026, at 9:00 a.m. in this Department. Clerk shall give notice.
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